

The Oudh Laws Act, 1876

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[WHEREAS it is expedient to declare and amend the laws to be administered in Oudh; It is hereby enacted as follows:--](#)

[Part I ? PRELIMINARY](#)

[1.](#)

[Short title.](#)

[This Act may be called the Oudh Laws Act, 1876 . Local extent. It extends only to](#)

[1](#)

[Oudh; Commencement. And it shall come into force on the passing thereof.](#)

[2.](#)

[\[Repeal of enactments.\] Rep. by the Repealing Act, 1938 \(](#)

[1 of 1938](#)

[\), s. 2 and Sch. PART GENERAL LAWS TO BE ADMINISTERED IN OUDH PART II GENERAL LAWS TO BE](#)

ADMINISTERED IN OUDH

3.

2

Statutory law to be administered in Oudh. The law to be administered by the Courts of Oudh shall be as follows:--(a) the laws for the time being in force regulating the assessment and collection of land- revenue;

(b)

in questions regarding succession, special property of females, betrothal, marriage, divorce, dower, adoption, guardianship, minority, bastardy, family relations, wills, legacies, gifts, partitions or any religious usage or institution, the rule of decision shall be--(1) any custom applicable to the parties concerned which is not contrary to justice, equity or good conscience, and has not been, by this or any other enactment, altered or abolished, and has not been declared to be void by any competent authority;

1. The words" the territories for the time being administered by the Chief Commissioner of" rep. by the A. O. 1937. 2. The provisions of this section have been rep. in so far as they are inconsistent with the Muslim Personal Law (Shariat) Application Act, 1937 (

26 of 1937

); see s. 6 of that Act.

(2)

the Muhammadan law in cases where the parties are Muhammadans, and the Hindu law in cases where the parties are Hindus, except in so far as such law has been, by this or any other enactment, altered or abolished, or has been modified by any such custom as is above referred to:

(c)

the rules contained in this Act:

(d)

the rules published in the Official Gazette as provided by section 40, or made under any other Act for the time being in force in Oudh:

(e)

the Regulations and Acts specified in the second schedule hereto annexed, subject to the provisions of section 4, and to the modifications mentioned in the third column of the same schedule:

(f)

subject to the modifications hereinafter mentioned, all enactments for the time being in force and expressly, or by necessary implication, applying to

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the territories which, immediately before the 1st November, 1956 , were comprised in Part A States and Part C States] or Oudh, or some part of Oudh:

(g)

in cases not provided for by the former part of this section, or by any other law for the time being in force, the Courts shall act according to justice, equity and good conscience.

4.

Validity of local customs and mercantile usages.

All local customs and mercantile usages shall be regarded as valid, unless they are contrary to justice, equity or good conscience, or have, before the passing of this Act, been declared to be void by any competent authority. PART PART

III CHAP DOWER AMONG MUHAMMADANS CHAPTER I DOWER AMONG MUHAMMADANS

5.

Muhammadan dower contracts how to be enforced.

Where the amount of dower stipulated for in any contract of dower by a Muhammadan is excessive with reference to the means of the husband, the entire sum provided in the contract shall not be awarded in any suit by decree in favour of the plaintiff, or by allowing it by way of set- off, lien or otherwise to the defendant; but the amount

1. Subs. by the Adaptation of Laws (No. 2) Order, 1956, for" Part A States and Part C States".

of the dower to be allowed by the Court shall be reasonable with reference to the means of the husband and the status of the wife. Rule applicable after husband' s death. This rule shall be applicable whether the suit to enforce the contract be brought in the husband' s life time or after his death. CHAP PRE- EMPTION CHAPTER II PRE- EMPTION

6.

Right of pre- emption.

The right of pre- emption is a right of the persons hereinafter mentioned or referred to, to acquire, in the cases hereinafter specified, immovable property in preference to all other persons.

7.

Presumption as to its existence.

Unless the existence of any custom or contract to the contrary is proved, such right shall, whether recorded in the settlement- record or not, be presumed--

(a)

to exist in all village- communities, however constituted, and whether proprietary or under- proprietary, and in the cases referred to in section 40 of the Oudh Land- revenue Act,

1

(17 of 1876) and

(b)

to extend to the village- site, to the houses built upon it, to all lands and shares of lands within the village- boundary, and to all transferable rights affecting such lands.

8.

Its existence in towns to be proved.

The right of pre- emption shall not be presumed to exist in any town or city, or any sub- division thereof, but may be shown to exist therein and to be exercisable therein by such persons and under such circumstances as the local custom prescribes.

9.

Devolution of right when property to be sold or foreclosed is a proprietary or under- proprietary tenure.

If the property to be sold or foreclosed is a proprietary or under- proprietary tenure, or a share of such a tenure, the right to buy or redeem such property belongs, in the absence of a custom to the contrary,-- First, to co- sharers of the sub- division (if any) of the tenure in which the property is comprised, in order of their relationship to the vendor or mortgagor; Secondly, to co- sharers of the whole mahal in the same order; Thirdly, to any member of the village- community; and Fourthly, if the property be an underproprietary tenure, to the proprietor.

1. See now the U. P. Land Revenue Act, 1901 (U. P. 3 of 1901).

Where two or more persons are equally entitled to such right, the person to exercise the same shall be determined by lot.

9A.

1

When a suit for pre- emption lies. No suit shall lie for enforcing a right of pre- emption under this Act in respect of a portion only of the property sold or foreclosed: Provided that, where the plaintiff has a right of pre- emption in respect of only a portion of the property sold or foreclosed, then notwithstanding anything to the contrary contained in any enactment a suit for the pre- emption of that portion only shall lie and the plaintiff shall have to pay the proportionate price or the proportionate amount due in respect of such mortgage for such portion of the property, as the case may be.]

10.

Notice to pre- emptors.

When any person proposes to sell any property, or when he forecloses a mortgage upon any property, in respect of which any persons have a right of pre- emption, he shall give notice to the persons concerned of the price at which he is willing to sell such property, or of the amount due in respect of such mortgage, as the case may be:

2

Provided that, where a person has a right of pre- emption in respect of a portion only of the property proposed to be sold or foreclosed, the notice to such person shall specify the proportionate amount of the price or the proportionate amount due in respect of such mortgage at which the person proposing to sell or foreclose is willing to sell or redeem such portion of the property, as the case may be.] Such notice shall be given through the Court within the local limits of whose jurisdiction the property or any part thereof is situate, and shall be deemed sufficiently given if it be stuck up on the chaupal or other public place of the village or city in which the property is situate.

11.

Loss of right of pre-emption.

Any person having a right of pre-emption in respect of any property proposed to be sold shall lose such right, unless within three months from the date of such notice he or his agent pays or tenders the price

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specified in the notice given under the preceding section] to the person so proposing to sell.

12.

Right of pre-emptor on foreclosure.

When the right of pre-emption arises in respect of the foreclosure of a mortgage

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or a portion of the mortgage], any person entitled to such right may, at any time within three months after the

1. S. 9A ins. by U. P. Act 15 of 1939, s. 2. 2. The proviso ins. by s. 3, *ibid.* 3. Subs. by s. 4, *ibid.*, for "aforesaid". 4. Ins. by s. 5, *ibid.*

giving of the notice required by section 10, pay or tender to the mortgagee or his successor in title the amount specified in such notice, and shall thereupon acquire a right to purchase the property,

1

or a portion thereof, as the case may be]. On completion of the purchase the person exercising the right of pre-emption shall be bound to pay to the mortgagee or his successor in title the amount specified in such notice, together with interest on the principal sum secured by the mortgage

1

or the proportionate amount of such principal sum in respect of the portion of the property in which he possesses the right of pre-emption, as the case may be], at the rate specified by the instrument of mortgage, for any time which has elapsed since the date of the notice, and any additional costs which may have been properly incurred by the mortgagee or his successor in title.

13.

Suit to enforce right of pre-emption. Any person entitled to a right of pre-emption may bring a suit to enforce such right on any of the following grounds (namely):--

(a)

that no due notice was given as required by section 10;

(b)

that tender was made under section 11 or section 12 and refused;

(c)

in the case of a sale, that the price stated in the notice was not fixed in good faith;

(d)

in the case of a mortgage, that the amount claimed by the mortgagee was not really due on the footing of the mortgage and was not claimed in good faith, and that it exceeds the fair market-value of the property mortgaged,

2

or the portion of the property mortgaged in respect of which he possesses the right of pre-emption, as the case may be]. If, in the case of a sale, the Court finds that the price was not fixed in good faith, the Court shall fix such price as appears to it to be the fair market-value of the property sold,

2

or the portion of the property sold in respect of which he possesses the right of pre-emption, as the case may be]. If, in the case of a mortgage, the Court finds that the amount claimed by the mortgagee was not really due on the footing of the mortgage, and that it was not claimed in good faith and that it exceeds the fair market-value of the property mortgaged

2

or the portion of the property mortgaged in respect of which he possesses the right of

1. Ins. by U. P. Act 15 of 1939, s. 5. 2. Ins. by s. 6, *ibid.*

pre-emption, as the case may be], the amount to be paid to the mortgagee shall not exceed what the Court finds to be such market-value.

14.

Decree to fix time for payment.

If the Court find for the plaintiff, the decree shall specify a day on or before which the purchase- money or the amount to be paid to the mortgagee shall be paid.

15.

Effect of non- payment of purchase- money.

If such purchase- money or amount is not paid into Court before it rises on that day, the decree shall become void, and the plaintiff shall, so far only as relates to such sale or mortgage, lose his right of pre- emption over the property to which the decree relates. CHAP PROCEDURE OF THE COURTS CHAPTER III PROCEDURE OF THE COURTS

16.

Rule of limitation.

The Judicial Commissioner' s Circular No. 104 of July, 1860 , shall be held to have been a notification within the meaning of section 24 of Act 14 of 1859 ,

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and such Act shall be deemed to have been in force in Oudh from the fourth day of July, 1862 ; and all orders and decrees passed under the rules contained in the said Circular, or under the said Act, shall be deemed to have been passed under a law in force for the time being. Nothing in his section affects the provisions of sections 102, 104, 105, 106, 107 and 108 of the Oudh Rent Act (XIX of 1868)

2

with regard to the limitation of suits under that Act.

17.

[Act 32 of 1871 , s. 28 to cease in any district from date of notification that it is no longer under settlement.][Act 32 of 1871 , s. 28, to cease in any district from date of notification that it is no longer under settlement.] Rep. by the Repealing and Amending Act, 1891 (12 of 1891).

18.

Recognized agents.[Recognized agents.] Rep., ibid.

19.

Rules for taking evidence.

3

Section 172 of Act No. 8 of 1859 is hereby repealed, so far as the province of Oudh is concerned, and the following section is substituted therefor:--" On the day appointed for the hearing of the suit, or on some other day to which the hearing may be adjourned, the evidence of the witnesses in attendance shall be taken orally in open Court in the presence and hearing and under the personal direction and superintendence of the Judge." A note of the essential points of the evidence of each witness is to be taken at the time, and in the course of oral examination, by the officer who tries the case, in his own language, or in English if he is sufficiently acquainted with that language, and such note shall be filed, and shall form part of the record of the case." If the evidence be taken down in a different language from that in which it has been given, and the witness does not understand the language in which it is taken down, the witness may require his deposition as taken down to be interpreted to him in the language in which it was given." It shall be in the discretion of the Court to take down, or cause to be taken down, any particular question and answer, if there appear any special reason for so doing, or any party or his pleader requires it." If any question put to a witness be objected to by either of the parties or their pleaders, and the Court allow the same to be put, the question and the answer shall be taken down, and the objection and the name of the party making it shall be noticed in taking down the depositions, together with the decision of the Court upon the objection." The Court shall record such remarks as it may think material respecting the demeanour of the witness while under examination.

1

The note as above required may be written and signed by the Judge with his own hand or typed to his dictation in open Court and signed by him with his own hand, and such note shall form part of the record."]

20.

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Execution- sale of ancestral and acquired property in land. So much of section 60 of the Code of Civil Procedure, 1908 (5 of 1908), as renders land liable to sale in execution of a decree shall be subject to the following restriction:-- No ancestral land shall be sold in satisfaction of a decree without the permission of the State Government. Explanation.-- In this section the words" ancestral land" mean--(a) land forming a mahal or share in or portion of a mahal, which has

been owned continuously from the conclusion of the first regular settlement by the proprietor, which term shall include an under- proprietor as defined in

1. Subs. by U. P. Act 24 of 1954, s. 2 and Sch., for the former paragraph. 2. Subs. by U. P. Act 3 of 1912, s. 2 for the original section.

section 4, clause (15), of the United Provinces Land- revenue Act, 1901 (U. P. 3 of 1901), or by the person or persons from whom such proprietor has directly or indirectly inherited such land;

(b)
land forming an estate or part of an estate as defined in the Oudh Estate Act, 1969 (1 of 1969);

(c)
land conferred by the British Government as a reward for services rendered to the State on the owner or on a person from whom such owner has directly or indirectly inherited such land; or

(d)
the interest of the holder of a grant of land revenue conferred by the British or any former Government on him or on a person from whom he has directly or indirectly inherited such interest.]

21.
[Appointment of manager of land attached.] Rep. by the Oudh Civil Courts Act, 1879 (13 of 1879).

22.
Service of process within jurisdiction of Lucknow Civil Court.
Notwithstanding anything contained in the said Code, any Civil Court sitting within the local limits of the jurisdiction of the Lucknow Civil Court, but exercising jurisdiction beyond such limits, may cause summonses, warrants, notices and other processes to be served within the local limits of the jurisdiction of the Lucknow Civil Court without causing the same processes to be served through such Court.

23.
[Section substituted for Act 19 of 1868 , s. 109.] Rep. by the Oudh Rent Act, 1886 (22 of 1886).

24.
[Section substituted for Act 19 of 1868 , s. 118.] Rep., ibid.

25.
[Right of occupancy in judgment- debtor' s sir- land.] Rep. by the Oudh Rent Act, 1886 , Amendment Act, 1901 (U. P. 4 of 1901).

26.
Revenue- agents authorized to appear, etc., in rent- suits.
Notwithstanding anything contained in Act No. XX of 1865

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all persons duly admitted and enrolled as Revenue- agents under that Act in
2
Oudh may appear, plead and act in suits under the Oudh Rent Act (19 of 1868)

3
in the Courts of officers exercising the powers of (19 of 1868 .)

1. See now the legal Practitioners Act, 1879 (18 of 1879)
) 2. The words" the territories for the time being under the administration of the Chief Commissioner of" rep. by the A. O. 1937. 3. See now the U. P. Tenancy Act, 1939 (U. P. 17 of 1939).
Assistant Collectors, Deputy Collectors, Collectors and Commissioners under the same Act.

27.
Power to make rules for custody and sale of attached property.
With the sanction of the State Government, the

1
High Court] may from time to time make rules consistent with this Act and with the Code of Civil Procedure

2
--

(a)

for the custody and sale of movable property attached in execution of decrees;

(b)

for the levy of a fee or commission on the sale of attached property and the disposal of the funds accruing from such fees;

(c)

as to the appointment and remuneration of persons

3

(not being persons in the service of the Government)] by whom property is to be attached, kept in custody and sold;

(d)

as to the appointment and remuneration of persons

3

(not being persons in the service of the Government)] by whom local investigations under section 180, and investigations and adjustments of accounts under section 181, of the Code of Civil Procedure

4

are to be made.

28.

[Power to revise decrees and orders of subordinate Courts.] Rep. by the Oudh Civil Courts Act, 1879 (13 of 1879).

CHAP VILLAGE AND ROAD- POLICE CHAPTER IV VILLAGE AND ROAD- POLICE

29.

Right to nominate village- policemen.

The nomination to the post of village- policeman shall be made by the zamindar of the village, or, where there are more zamindars than one, by the lambardar as their representative; and, where there are more lambardars than one, the opinion of the majority (unless there is some special provision to the contrary in the village administration- paper) shall prevail.

30.

Obligation to nominate.

Every person authorized to nominate to the office of village- policeman shall, within fifteen days after the occurrence of a vacancy in such office, nominate a proper person to the vacant post, and communicate the nomination to the Magistrate of the district.

1. Subs. by the A. O. 1950, for " Chief Court". 2. See now the Code of Civil Procedure, 1908 (5 of 1908). 3. Ins. by the A. O. 1937. 4. See now the Code of Civil Procedure, 1908 (5 of 1908), Sch. I, Order 26, rules 9 to 12.

31.

Discretion to appoint or reject nominee.

The person so nominated shall, after due enquiry into his age, character and ability, be appointed or rejected by the State Government.

32.

Power to Government to appoint.

In default of such nomination within the said fifteen days, the State Government shall appoint such person as it thinks fit to the vacancy. Procedure in case of rejection of nominee. If the nomination has been made within the said fifteen days, but the nominee is rejected, the person authorized to nominate shall, within fifteen days from the date of such rejection, nominate another person to the vacant post; and in default of such nomination, or if such nomination has been made but the nominee is again rejected, the State Government shall appoint such person as it thinks fit to the vacancy.

33.

Appointment of road- police.

Subject to the rules to be framed under section 39 and for the time being in force, the State Government may from time to time appoint persons to be

1

road- police].

34.

Duties of village and road policemen.

Every village- policeman and every road- policeman shall perform the following duties:--

(a)

he shall give immediate information to the officer in charge of the police- station appointed for his village or beat--

(1)

of every unnatural, suspicious or sudden death occurring in the village of which he is chaukidar, or within his beat;

(2)

of each of the following offences occurring in such village or on such beat (that is to say), murder, culpable homicide, rape, dacoity, theft, robbery, mischief by fire, house- breaking, counterfeiting coin, causing grievous hurt, riot, harbouring a proclaimed offender, exposure of a child, concealment of birth, administering stupefying drugs, kidnapping, lurking house- trespass; and

(3)

of all attempts and preparations to commit, and abetments of, any of the said offences:

(b)

he shall keep the police informed of all disputes which are likely to lead to any riot or serious affray:

(c)

he shall arrest all proclaimed offenders, and all persons whom he may find in the act of committing any offence specified in paragraph (a), clause (2), of this section:

1. Subs. by the A. O. 1937 for" the road- police of his district".

(d)

he shall observe and from time to time report to the officer in charge of the police- station within the jurisdiction of which his village or beat may be situate, the movements of all bad characters in or on such village or beat:

(e)

he shall report to the officer in charge of such police- station the arrival of suspicious characters in the neighbourhood:

(f)

he shall supply to the best of his ability any local information which a Magistrate or any officer of police may require, and shall promptly execute all orders issued to him by competent authority.

35.

Procedure on arrest by village or roadpoliceman.

Whenever a village- police- man or road- policeman arrests any person, he shall take him as soon as possible to the police- station within the jurisdiction of which his village or beat is situate.

36.

Dismissal of village or roadpoliceman.

The Magistrate of the district may dismiss any village- police- man or road- policeman for any misconduct or neglect of duty. Where any village- policeman is guilty of neglect of duty or other misconduct, the person authorized to nominate to his office may report him for dismissal to the Magistrate of the district; and such Magistrate shall dismiss him accordingly, unless the Magistrate has reason to think that such dismissal would be improper.

37.

Acts punishable.

Every village- policeman and road- policeman guilty of any wilful misconduct in his office, or of neglect of duty, such misconduct or neglect not being an offence within the meaning of the Indian Penal Code (45 of 1860). or withdrawing from the duties of his office without permission and without having given at least two months' notice of his intention to withdraw from such duties to the persons authorized to nominate or appoint under sections 29, 32 and 33 (as the case may be), or offering any unnecessary personal violence to any person in his custody, Penalty. shall be liable, on conviction before a Magistrate, to a penalty not exceeding three months' pay, or to imprisonment for a period not exceeding three months, or to both.

38.

Fines to be credited to such fund as Government appoints.

All fines levied under this Act on village- policemen or road- policemen shall be credited to such fund as the State Government from time to time appoints.

Chapter V

SUBSIDIARY RULES

39.

Power to make rules.

The State Government may, from time to time,

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make rules consistent with this Act as to--(a) the discipline and remuneration of the village and road- police and the regulation of their number, location and duties;

(b)

the disposal of unclaimed property under Act

No. 5 of 1861

(for the regulation of police), sections 25, 26 and 27;

(c)

public health and conservancy at fairs and other large public assemblies, and the maintenance of a proper watch and ward at such fairs and assemblies;

(d)

imposing

2

taxes for those purposes only;

(e)

3

the keeping and custody of civil, criminal and revenue records.]

4

40.

Publication of rules.

All rules made by the State Government under section 39, and all rules made by the

5

High Court] under section 27, shall be published in the Official Gazette, and shall thereupon have the force of law.

41.

[Continuance of prior rules as to matters for which rules may be made under the Act.] Rep. by the Repealing and Amending Act, 1891 (12 of 1891).

42.

Penalty for breach of rules.

Whoever breaks any rule made or continued under this Act, not being a rule made by the

5

High Court], shall, on conviction before a Magistrate, be punishable with fine which may extend to fifty rupees, or with imprisonment for a term which may extend to six months, or with both.

1. The words" with the previous sanction of the G. G. in C." rep. by Act 14 of 1878, s. 5. 2. The words" with the previous sanction of the G. G. in C." rep. by the A. O. 1937. 3. Subs., ibid., for the original cl. (e). 4. Cl. (f) was omitted by the A. O. 1937, cl. (g) relating to s. 25 of this Act was omitted by the Oudh Rent Act, 1886, Amendment Act, 1901 (U. P. 4 of 1901). The proviso was omitted by the A. O. 1937. 5. Subs. by the A. O. 1950, for" Chief Court".

CHAP MISCELLANEOUS CHAPTER VI MISCELLANEOUS Honorary Civil Jurisdiction

43.

[Power to invest taluqdars with civil jurisdiction.] Rep. by the Oudh Civil Courts Acts, 1879 (13 of 1879 .) Honorary police- officers

44.

Honorary police- officers.

The State Government may, from time to time, confer on any person whom it thinks fit any power which may be exercised by a police- officer under any Act for the time being in force, and withdraw any power so conferred. Creation and alteration of districts and sub- divisions

45.

[Power to create new districts. Power to form sub- divisions of districts.] Rep. by the United Provinces Act, 1890 (20 of 1890), s. 35.

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